

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

Previous edition unusable

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Begin Delivery Lead Time Event	Date of Notice to Proceed Receipt	Date of Award Receipt
Response Due Date	12 Jan 2026	10 Feb 2026

Section 00 20 00 - Instructions for Procurements

The following clauses were modified:

52.236-27Site Visit (Construction). (Alternate I)Feb 1995Alternate IFeb 1995 hereby reads as follows:

Alternate I (Feb 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) An organized site visit and Pre-Proposal Conference have been scheduled for-

16 December 2025.

(c) Participants will meet at-

7:30 AM local time - Arrive at the Regatta Banquet Center at 28 Levesque Dr., Eliot, ME 03903 for security review and badging.

- All attendees, regardless of Bus Tour participation, must meet at this time to complete security review.
- All firms must have a completed Attachment K - DOD CUI NDA on file with Contract Specialist, Stephanie Wray, prior to attendance.

8:00 AM local time - Introductions and Kickoff.

9:00 AM local time - 2-hour site visit bus tour at Portsmouth Naval Shipyard departing from and returning to the Regatta Banquet Center.

- No camera-equipped devices are allowed on the bus, including phone cameras. Participation in the site visit bus tour is limited to a maximum of 2 participants per firm.
- There will be walking during the periods of the bus tour. Appropriate attire for the weather is recommended. Standard PPE is required.
- All tour participants must be US Citizens and show proof as listed in one of the options below:
 - Birth Certificate AND photo ID (Real ID License); OR
 - Valid U.S. Passport

11:00 AM local time - Bus tour returning to the Regatta Banquet Center for the Pre-Proposal Conference.

- 5-hour pre-proposal conference covering details of the drawing set and there is no limit on the number of attendees per firm.

12:15 AM local time - Break

- There will be a working lunch. Please bring "brown bag" lunch as there are no microwaves or kitchen available. No food will be provided. Presentations will continue during lunch.

12:30 AM local time - Presentations resume.

5:30 PM local time - Presentations conclude.

- Separate lists of attendees for the site visit and pre-proposal conference must be provided to Contract Specialist, Stephanie Wray via email at stephanie.l.wray2.civ@us.navy.mil no later than 5PM Norfolk VA local time 09 December 2025. **Due to security requirements, late requests for attendees will not be accepted.** Please indicate who will be attending the Pre-Proposal Conference presentation and who will be attending the Site Visit bus tour.

Section 00 21 00 - Instructions

Miscellaneous text in this section has been modified to:

INSTRUCTIONS TO OFFERORS:

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1. GENERAL

1.1 GENERAL OVERVIEW OF PROCUREMENT PROCESS

- This acquisition is being solicited on an unrestricted basis, with Full and Open Competition.
- The NAICS code for this procurement is 237130 - Power and Communication Line and Related Structures Construction and the size standard is \$45,000,000.
- In accordance with DFARS 236.204(v), the magnitude of construction for this project is over \$500,000,000.
- This solicitation is formatted as a Request for Proposal according to FAR Part 15. This method permits evaluation of proposals based on price competition, technical merit and other factors; permits impartial and comprehensive evaluation of offerors' proposals; permits discussions if necessary; and ensures selection of the source whose performance provides the best value to the Government.

1.2 GENERAL OVERVIEW OF CONTRACT

- Description of Work: The purpose of the P1080 Power Reliability and Water Resiliency Upgrades project is to provide increased reliability, resiliency and capacity to the existing electric and water utility systems primarily responsible for the protection of nuclear-powered submarines and nuclear support facilities at Portsmouth Naval Shipyard (PNSY). It also provides improvements at the water treatment plant and water lines within the Town of Kittery in partnership with the Kittery Water District (KWD), transmission lines and new transformer in partnership with Central Maine Power (CMP), and water and power improvements within the facility boundary. The P1080 project includes the following major components:
 - The Power reliability and water resiliency project provides increased reliability, resiliency, and capacity to the existing electric and water utility systems primarily responsible for the protection of nuclear-powered submarines and nuclear support facilities at PNSY. In order to support this on-base effort, there are two off-base private utility projects which are currently in design phase and will be needed to ultimately connect with the on-base work.
 - Off-Base Electrical: Provides modifications to the commercial power supply provided by Central Maine Power (CMP) to PNSY.
 - Off-Base Water: Provides modifications to the commercial water utility supply provided Kittery Water District (KWD) to PNSY
 - THIS PROJECT is for the On-Base work. The On-Base project on PNSY provides upgrades and modifications to shipyard power distribution, energy storage, and onsite generation to increase capacity, capability, and resiliency of the microgrid. The scope of this project includes:
 - Provides increased reliability, resiliency, and capacity to the existing electric and water utility systems primarily responsible for the protection of nuclear-powered submarines and nuclear support facilities at Portsmouth Naval Shipyard (PNSY). This project will include the following major components:
 - Constructs a new elevated water tower to provide water storage. Provides new footprint to replace Building 362 and expand Building 72 in order to accommodate new electrical equipment to meet code requirements. Adds new footprint to the Building 163 to accommodate new equipment to support and distribute new water flows and storage.
 - Provides new switchgear for the new transmission line from Bolt Hill Substation as part of Electrical Distribution Building. Upgrades the Franklin Substation Yard and Annex to include replacement of 15KV switchgear and feed to accommodate the proposed available short-circuit current and corresponding improvements to support the new redundant line.
 - Replaces the 15KV switchgear at Building 72 / Powerplant with equipment rated for the new power requirements.
 - Upgrades/renovates Substations 3 and 4 to include replacing existing switchgear and providing ancillary support equipment.
 - Provides an upgraded microgrid control system to manage electrical system throughout PNS.
 - The project will connect to the privatized electrical utility system owned by CMP (SO).
 - Provides for new pumps, controls, station piping, distribution piping, back-up power generation, to include electrical, structural, and mechanical improvements to

accommodate the required improvements for Dry Dock 2 - Sea Water Cooling.

- Installs water mains to cross the river at Bridges 1 and 2, installs/replaces water mains on-yard to provide connection from KWD connection to the bridges, from the bridges to Building 163, from Building 163 to the new water storage tank, as well as metering pits and required valving.
- Upgrades the existing Building 163 pump station to include replacement of pumps with larger pumps, new piping and larger piping connections to accommodate new lines from the bridges, improvements to electrical, and mechanical systems.
- Upgrades and provides new SCADA system to support the new water tower and existing water infrastructure.
- The project will connect to the privatized water system owned by KWD (SO).
- Facility-related control systems include cybersecurity features in accordance with current DoD criteria.
- This project will provide Antiterrorism (AT) features and comply with applicable service and Geographic Combatant Commander policies and directive per Unified Facilities Criteria (UFC) and DoD Minimum Antiterrorism Standards for Buildings.
- Provides costs for contractor leased space off-yard for laydown and storage and for parking for shipyard personnel.
- Provides installation support for services required during construction.
- Includes Operations and Maintenance Support Information (OMSI).
- DoD and DON principles for high performance and sustainable building requirements will be included in the design and construction of the project in accordance with federal laws and Executive Orders.
- Low Impact Development will be included in the design and construction of this project as appropriate.
- Includes clearing, excavation, hazardous materials abatement, and contaminated soil disposal required for site preparation to support construction.
- Includes utility trench paving, sidewalk repairs, new concrete pads for electrical equipment, and site restoration required for project construction under paving and site improvements.
- Provides electrical utilities including ancillary improvements required for primary project objectives including installation of new alternating current (AC) and direct current (DC) ductbanks to create a micro-grid and provides new electrical equipment, additional power generation, and distribution to support future shipyard loads.

- Provides mechanical utilities including cleaning and lining of some existing water lines and new water lines on-yard to support new water flow requirements.
- Environmental mitigation includes potential signage and improvements needed to mitigate impacts on archaeological and historical resources, as well as archaeological monitoring that will be required during invasive construction activities.
- Provides for the demolition of Building 362.

2. BASIS FOR AWARD

2.1 The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to the contract; to negotiate with Offerors in the competitive range; and to award the contract to the Offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, price, non-price and other factors considered.

2.2 As stated in the solicitation, the Government intends to evaluate proposals and award a contract without discussions with Offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

2.3 The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced Offeror or other than the highest technically rated Offeror.

2.4 The relative order of importance of the non-price evaluation factors is the technical factors (Factors 1, 2, 3, and 4) are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor (Factor 5). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are significantly more important than price.

2.5 The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

2.6 Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-price/price factors will result in an overall rating of "Unacceptable" for the non-price/price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal.

3. EVALUATION FACTORS FOR AWARD

3.1 FAR Part 9.6 defines Contractor team arrangements. Contractor team arrangement, as used in this subpart, means an arrangement in which -- (1) Two or more companies form a partnership or joint venture to act as a potential prime Contractor; or (2) A potential prime Contractor agrees with one or more other companies to have them act as its subcontractors under a specified Government contract or acquisition program.

3.2 If an Offeror is utilizing experience information of affiliates/subsidiaries/parent /LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent/LLC/LTD member companies will have involvement in the performance of the contract in order for the experience information of the affiliate/subsidiary/parent/LLC/LTD member companies to be considered. The proposal shall state specific commitments of technical resources (e.g., personnel, management, equipment that the affiliate/subsidiary/parent/LLC/LTD member companies shall commit to the performance of this contract). In particular, the proposal shall clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in the performance of the contract.

3.3 Vague commitments to support are insufficient; rather, they must demonstrate intent/manner of actual performance on the contract action being solicited.

3.4 The Offeror shall submit a signed copy of partnership agreement, teaming agreement, or letter of commitment for each member of the Offeror's team (e.g., partner, team member, subcontractor, parent company, subsidiary, or other affiliated company, etc.) whose projects are submitted to demonstrate Construction or Design Experience. The Government will not consider any project submitted for Factor 1 if it was performed by a firm other than the Offeror and there is no supporting partnership agreement, teaming agreement, or letter of commitment.

3.5 The solicitation requires the evaluation of price and the following non-cost/price factors:

- Factor 1 - Corporate Experience
- Factor 2 - Scheduling
- Factor 3 - Small Business Utilization
- Factor 4 - Safety
- Factor 5 - Past Performance

3.6 The distinction between corporate experience and past performance is that corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

3.7 PRICE FACTOR

(a) Solicitation Submittal Requirements

All submissions shall include the following:

- Executed SF1442 - Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1442. In addition, Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, Unique Entity Identifier (UEI), CAGE code, and Federal Tax ID number, Point of Contact (POC), POC phone number, and POC email address, with its proposal.
- Completed Price Proposal Form - Price shall be submitted on the Price Proposal Form included in the solicitation (Attachment G). The offeror shall submit one (1) electronic copy via PEE, of the solicitation submittal requirements identified below. Also, price information included in the non-price/technical proposal will not be considered. Likewise, non-price/technical information included in the price proposal will not be considered. The Offeror is required to submit a complete Price Proposal Form that includes completion of all contract line items numbers (CLINs). Pricing information is not required to be completed under Section 00 10 00 - Solicitation Contract Form in SF 1442. All required proposal documents shall be submitted in accordance with FAR 15.208.
- Economic Price Adjustments: The offeror shall submit with its proposal the Unit Price Form (Attachment L). Attachment L lists the materials/commodities subject to FAR 52.216-4, Economic Price Adjustment-Labor and Material. Offerors shall include a unit cost (excluding indirect costs and profit) for any commodity in the schedule. Note: Offeror does not have to propose on any or all materials/commodities. Only those materials /commodities that the Offeror proposed a unit cost will be subject to adjustments in accordance with FAR 52.216-4. If a unit cost is not proposed, adjustments will not be allowed. FAR 52.211-18 Variation in Estimated Quantity does not apply to Attachment L. The estimated quantities are strictly for the purpose of administering the clause. Price adjustments subject to FAR 52.216-4 are limited to, at a maximum, the quantities listed in Attachment L.
- Bid Bond (SF-24) - Offeror shall submit a bid bond (SF-24) in the amount of 20% of total project bid price for the project or \$3M, whichever amount is less. The bid bond shall be in the name of the offeror identified on the SF1442.
- SAM registration - Offeror shall ensure current registration on the SAM Website, www.sam.gov, including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00 45 00 of the RFP is not provided in SAM, include the representation or certification in your price proposal.
- SAM Contractor Responsibility - The Offeror shall ensure their System for Award Management (SAM) Contractor's responsibility Certification is up to date as required by FAR 52.209-7, Information Regarding Responsibility Matters.
- VETS-4212 registration - Confirmation of filing of Veterans' Employment and Training (VETS-4212) for the 2024 /2025 filing cycle. Offeror shall ensure a current VETS- 4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm> if the Offeror is required to submit. An email confirmation of

submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

- Small Business Subcontracting Plan - See details below in "Additional Information to be submitted with price proposal package"

NOTE: A small business joint venture Offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with FAR 52.204-8(d) and FAR 52.212-3(b) for the following categories:

- *Small business (SB);*
- *Service-disabled veteran-owned small business (SDVOSB);*
- *Women-owned small business (WOSB) under the WOSB Program;*
- *Economically disadvantaged women-owned small business under the WOSB Program (SDB); or*
- *Historically underutilized business zone small business (HUBZone)*

Additional Information to be submitted with price proposal package:

- Responsibility Determination Information - In order to be eligible for award, the offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate Tab, the offeror shall provide the following information in the price proposal package:
- One (1) Signed Bank Reference demonstrating adequate financial resources. If offeror's firm has a line of credit - provide information on how many figures offeror can borrow against the line of credit (i.e. medium 6 figures - exact line of credit is not required).
- The latest three complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror. Offerors are not required to submit financial information as detailed in the price submission instructions via PIEE. However, if this is the case, the submitted copies in the hard copy proposal must be received no later than the established due date and time.
- Description of offeror's facilities and equipment.
- Other offeror's work presently under contract. Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.
- Small Business Subcontracting Plan (April 2020) (REFERENCE FAR 52.219-9 ALT II AND DFARS 252.219-7003) Information. In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) utilizing the template provided as Attachment F. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSEB but reviewed by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and/or accepted within the time specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars. These goals will be incorporated into the solicitation.

- | | |
|-----------------------|-----|
| • Small Business (SB) | 40% |
| • HUBZone SB | 3% |

- Service-Disabled Veteran-Owned Small Business (SDVOSB) 5%
- Small Disadvantaged Business 5%
- Woman-Owned Small Business (WOSB) 9%

The SBSP shall be consistent with the commitments offered in the Small Business Participation and Commitment Strategy (Attachment E). In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

Please note that SBSP goals and the participation rates provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation rates within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products /services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD. Although required to be submitted with offeror's price proposal, this information will not be evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award. Proposal packages from unsuccessful offerors will not be returned to the offeror but shall be destroyed by the Contracting Officer. No certificate of destruction will be issued.

(b) Basis of Evaluation:

The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items. The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in the solicitation. In accordance with FAR 52.217-5, the evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price.

- Comparison of proposed prices received in response to the RFP.
- Comparison of proposed prices with the IGCE.
- Comparison of proposed prices with available historical information.
- Comparison of market survey results.

3.8 NON-PRICE FACTORS

Factor 1 - Corporate Experience

(a) Solicitation Submittal Requirements:

The Offeror shall submit the following information regarding Construction Experience:

- Submit a maximum of five (5) relevant construction projects that best demonstrate your experience on relevant projects that are similar in size, scope, and complexity to aspects of the utility distribution work anticipated under this contract. For the purposes of this evaluation, relevance is further defined as a project including ALL of the following:
 - Construction of distribution systems for power, water, steam, or gas.
 - A construction value equal to or exceeding \$50,000,000, however, offerors shall provide the value as of the day of project award.
 - Completed or substantially completed (80% completed) within ten years of the date of issuance of this solicitation.

Further, the Offeror's collective set of submitted projects shall also aggregately demonstrate experience performing construction services satisfying EACH of the following:

- One project with a construction value equal to or exceeding \$100,000,000.
- One project constructing a distribution system for power. For example, these types of projects would include equipment such as transformers, substations, and switchgears.

A project is defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.

The attached Construction Experience Project Data Sheet (Attachment B) is MANDATORY and SHALL be used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, total length for each project data sheet shall not exceed two (2) double-sided pages (or four (4) single-sided pages) 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger. Attachment B submittals that do not comply with these requirements will not be evaluated. For all submitted projects, the description of the project shall clearly describe the relevancy to the project requirements of this RFP.

For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP (i.e., unique features, area, construction methods). In addition, the description should also address any sustainable features for the project, including specific descriptions of those features. Provide applicable documentation on projects that were validated and/or certified through a Sustainable Third-Party Certification program.

If the Offeror is a Joint Venture (JV), relevant project experience should be submitted for projects completed by the Joint Venture entity. If the Joint Venture does not have shared experience, projects may be submitted for the Joint Venture members. If a project was performed by a JV, and not all partners from that JV are on the JV proposed for this contract, the offeror shall clearly demonstrate what portion of the work was performed by the JV member, including the overall percentage, offering on this contract and shall not include work performed by the JV as a whole. The Offeror shall also submit a SIGNED copy of the Joint Venture agreement indicating the proposed participation of each Joint Venture member. Offerors are still limited to a total of five (5) projects combined.

If an Offeror is utilizing experience information of affiliates/subsidiaries/parent/LLC/LTD member companies (name is not exactly as stated on the SF1442), the proposal shall clearly demonstrate that the affiliate/subsidiary/parent firm will have meaningful involvement in the performance of the contract. The proposal shall state specific commitments of technical resources (e.g. personnel, equipment) that the affiliate/subsidiary/parent/LLC/LTD member companies commit to the performance of this contract. In particular, the proposal will clearly state the specific commitments of resources of the affiliate/subsidiary/parent/LLC/LTD member that will be located at the worksites and company offices in the city /area of the project. The proposal shall also describe specific roles of the affiliate/subsidiary/ parent/LLC/LTD member companies in terms of the work it will either self-perform or manage on behalf of the Offeror in performance of the contract. Failure to submit this information may result in a lower rating.

(b) Basis of Evaluation:

The basis of evaluation will include the Offeror's demonstrated experience and depth of experience in performing relevant construction projects as defined in the solicitation submittal requirements. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the RFP. The Government will only review five (5) projects for construction and projects will be evaluated in the order they are listed. Any projects submitted in excess of the five (5) for Construction Experience will not be considered.

Proposals demonstrating experience self-performing relevant features of work may be considered more favorably than those that do not demonstrate self-performance.

Factor 2 - Scheduling

(a) Solicitation Submittal Requirements:

Project Schedule Narrative:

- The Offeror shall provide a narrative limited to ten (10) single-sided pages or, five (5) double sided pages, 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger.
- The narrative shall be based upon a total contract duration of 1930 days, an assumed award date of 12 August 2026 and Notice to Proceed for Full site access no later than 29 September 2026.
- The offeror at a minimum, shall clearly identify the proposed dates for the following: Ordering and delivery of long lead materials impacting the critical path and meeting all defined milestones of the Division I specification.

Provide a project schedule using P6 software. Submit with the proposal, the PDF of the full schedule output via PIEE and the native (.xer) file via email to Stephanie Wray at Stephanie.L.Wray2.civ@us.navy.mil. The proposed project schedule need not be cost-loaded; however, it shall serve as the basis for the Offeror's price proposal. The above completion dates in item shall be reflected in this schedule along with major construction activities, milestones, and critical path items. The schedule shall be on 11"x17" pages, single-sided, and there is no page limit.

NOTE:

- *Narrative and schedule are not allowed to propose variances from Contract requirements. For example, Offerors are not allowed to propose contractual conditions that shift schedule risk to the Government or propose limitations on the ability of the Government to properly administer the contract.*
- *Failure to address any of the submission requirements will result in a deficiency.*
- *The assumed award date is stated for proposal evaluation purposes only and does not infer or guarantee that an award will be made by that date.*

(b) Basis of Evaluation:

- The Offeror's proposed construction completion dates, project schedule, and narratives will be evaluated to ensure timely completion of the project within the dates and milestones specified.
- The evaluation will consider how well the Offeror understands the major construction activities, task predecessors, and critical path items to execute the project.
- Proposals that identify innovative approaches and lessons learned from previous completed projects that will be applied to this project to mitigate schedule risk and recover schedule time in the event of project delays may be rated more favorably.

Factor 3 - Small Business Utilization and Participation

It is the policy of the Government to provide maximum practicable opportunities in its acquisitions to Small Business (SB) concerns, including Small Disadvantaged Business (SDB), Woman-Owned Small Business (WOSB), Historically Underutilized Business Zone Small Business (HUBZone SB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and other small business concerns. Further, it is the policy of the Government that such concerns will have the maximum practicable opportunity to participate in contract performance consistent with its efficient performance. This Factor assesses both the historical achievements in utilizing small business concerns and the proposed small business participation commitment for this requirement. The offeror is required to demonstrate its previous commitment to SBs through its record of past utilization of SBs and the level of commitment to small business if awarded a contract under this solicitation.

(a) Solicitation Submittal Requirements:

All Offerors (large, non-profits, AND small businesses) shall use Attachment D (Historical Small Business Utilization) to demonstrate their historical utilization of SBs. Each project submitted under Factor 1, Corporate Experience, shall be included on Attachment D. Failure to include each project submitted under Factor 1, Corporate Experience, on Attachment D, or the failure to fully complete Attachment A for each project may result in a deficiency. Only complete Attachment D. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment D will not be evaluated. Offerors are permitted to expand portions of the form, as needed, to provide sufficient response. Instructions regarding how to complete Attachment D are included at the beginning of the attachment.

All Offerors (large, non-profits, AND small businesses) shall use Attachment E (Small Business Participation Commitment Document (SBPCD)) to submit the following required information for evaluation of this factor:

- To demonstrate commitment to use small business concerns in the performance of this contract, identify by name the subcontractors that will be used to support each small business category, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSBs. Identify the type and complexity of product/service to be subcontracted, and the type of commitment (i.e., teaming agreement, joint venture agreement, mentor protegee agreement, letter of commitment, etc.) with each subcontractor.
- If subcontractors are not identified by name, offerors shall provide a detailed explanation why subcontractors are not identified. If firm written commitments with SBs are not in place, offerors shall provide an explanation and rationale on the ability to achieve the proposed participation. (See Attachment E, paragraph 5)

- If an LB offeror does not intend to subcontract, provide a detailed explanation why subcontracting would not result in efficient contract performance. SBs intending to 100% self-perform are not required to provide an explanation. (See Attachment E, paragraph 6).

To demonstrate maximum practicable participation of small businesses, identify (in terms of dollar value and percentage of the total contract value) the offeror's proposed small business participation. The minimum required small business participation (i.e. work to be performed by small business as the prime contractor and/or work to be performed by small business subcontractors) is 40%. Offerors who are not able to meet the minimum total small business participation requirement of 40% (of the total contract value) shall provide a detailed explanation why the minimum total small business participation requirement cannot be achieved.

Only complete Attachment E. Information provided in a different format and/or on a form created by the offeror will not be evaluated. Attachments or addendums to Attachment E will not be evaluated.

Large business offerors may achieve the minimum total small business participation requirement through subcontracting to small businesses.

Small business offerors may achieve the minimum total small business participation requirement through their own performance/participation as a prime as well as through a joint venture, teaming arrangement, and/or subcontracting with other small business concerns.

(b) Basis of Evaluation:

The Government will evaluate the likelihood of success in achieving the small business objectives of this acquisition based on the following:

- The extent to which the offeror is able to demonstrate a history of supporting Government policies concerning the utilization of small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and the success in achieving goals established by subcontracting plans on prior contracts. For projects submitted for Factor 1, Corporate Experience, that did not have established small business goals, consideration will be given to the utilization of the small business concerns and the degree of usage of small business relative to the total contract value. Historical Small Business Utilization will only be evaluated if performed by the offeror.
- The extent to which the offeror has demonstrated an achievable commitment to use small businesses, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB in the performance of this contract within the SBPCD.

The minimum small business participation requirement, through work performed by the small business prime and/or subcontracting with small businesses, shall meet or exceed 40% of the total contract value, unless the offeror provides a reasonable and well-documented explanation for why the minimum 40% small business participation requirement cannot be achieved.

- Offerors that demonstrate a commitment to providing maximum practical opportunity to small businesses may be rated higher.
- Proposing less than 40% total small business participation requirement may result in a deficiency.
- Offerors that do not demonstrate commitment to providing maximum practical opportunity to small businesses may result in a deficiency.

The SBPCD will be evaluated to determine the extent to which small business concerns are specifically identified by name and socioeconomic category in the document and the degree to which small business concerns, including SDB, WOSB, HUBZone SB, VOSB, and SDVOSB will participate relative to the total contract value. The complexity and variety of the work small business concerns will perform and the degree of commitment to use named sources through formal teaming agreements, joint venture agreements, mentor protegee agreements, written/signed letters of /commitment, etc. will be evaluated to assess achievability of the commitment.

- The offeror may receive a deficiency if firm commitments with subcontractors are not provided, and the offeror fails to provide a detailed explanation for how the proposed small business participation requirement will be achieved.
- The offeror may be rated lower if they fail to provide a detailed explanation for why subcontracting would not result in efficient contract performance (Not applicable to SBs intending to 100% self-perform or LBs and non-profits who intend to subcontract).

Factor 4 - Safety:

(a) Solicitation Submittal Requirements:

The Offeror shall submit the following information:

The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative as described further below. For a partnership, joint venture, the Offeror shall submit separate DART, TCR for the specified five (5) CY for each contractor who is part of the partnership or joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions. **NOTE:** *DART and TCR shall not be submitted for subcontractors.*

DART Rate: Submit five (5) previous complete calendar years' [CY2020, CY2021, CY2022, CY2023, and CY2024] worth of data (not an overall average). If the Offeror has no DART rate for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

- Dart cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.
- Calculation of DART rate: Multiply the total number of DART cases by 200,000 and then divide by the number of employee labor hours worked.

$$\text{DART RATE} = (\text{Number of DART Incidents} \times 200,000) / (\text{Total Number of Employee Labor Hours Worked})$$

TCR Rate: Submit five (5) previous complete calendar years' [CY2020, CY2021, CY2022, CY2023, and CY2024] worth of data (not an overall average). If the Offeror has no TCR rate for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required, that includes any corrective actions taken for improvement.

- TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.
- Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000 and then divide by the number of employee labor hours worked.

$$\text{TCR RATE} = (\text{Number of TCR Incidents} \times 200,000) / (\text{Total Number of Employee Labor Hours Worked})$$

Technical Approach for Safety: Submit a narrative that addresses the following:

- Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- Describe the evaluation process used to select potential subcontractors.
- Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout the performance of the contract (to include their own in-house workforce).
- The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page.

The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(b) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- Missing data without an explanation is considered a deficiency.
- Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
- An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

This chart correlates the DART rate to the level of risk:

<u>Risk</u>	<u>DART Rate</u>
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High Risk	Greater than 4.0

TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the Offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- Missing data without an explanation is considered a deficiency.
- Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
- An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.

This chart correlates the TCR rate to the level of risk:

<u>Risk</u>	<u>TCR Rate</u>
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

Technical Approach to Safety Narrative - To determine the degree to which the Offeror:

- Describes a viable SMS that addresses elements, such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.
- Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
- Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
- The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page. Information on pages beyond this will not be considered.

The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

Factor 5, Past Performance:

(a) Solicitation Submittal Requirements:

- If a completed Contractor Performance Assessment Reporting System (CPARS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 1 for construction experience. If there is not a completed CPARS evaluation, then submit Past Performance Questionnaires (PPQ) (Attachment C) for each project included in Factor 1 for both Construction Experience and Design Experience. The Offeror should provide complete PPQ's in the proposal. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. If the Offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the Offeror shall complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). The Government may make reasonable attempts to contact the client noted for that project(s) to obtain the PPQ information. However, Offerors should follow-up with clients/references to help ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contact, Stephanie Wray, Contract Specialist, NAVFAC Atlantic Contracting (ACQ3); stephanie.l.wray2.civ@us.navy.mil; Office: (757) 322-8172.
- Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1 - Corporate Experience. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.
- The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor.
- Performance award or additional information submitted will not be considered.

(b) Basis of Evaluation:

The degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g., CPARS, Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), performance recognition documents, and information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.); and
- Recency of tasks performed that are identical to, similar to, or related to the task at hand.

This evaluation will consider how well the Offeror's team performed on relevant projects submitted under Factor 1 - Corporate Experience and may also consider past performance on other projects currently documented in known sources.

The Government will consider the recency and relevance of the information, the source of the information, context of the data, and general trends in the Contractor's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's team's past performance will be used as a means of evaluating the Offeror's team's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will receive a NEUTRAL Confidence rating.

4. PROPOSAL REQUIREMENTS

4.1 PROPOSAL SUBMISSION INSTRUCTIONS:

- In response to this request for proposal, the complete proposal shall include the Price Proposal and the Non-Price Factors Proposal, submitted in accordance with the above Basis of Evaluation and Submittal Requirements for Each Factor.
- Offerors shall submit electronic proposals (.pdf format) in response to this solicitation. Only the PIEE Solicitation Module is authorized for the submission of electronic proposals in response to this solicitation.
- Electronic proposal submissions should be no larger than 1.9 GB per file. Offerors shall ensure that the Government has received the electronic proposal prior to the date and time specified. PIEE Solicitation Vendor Access Instructions are provided via Attachment I. Emailed submissions will not be accepted.
- Offerors shall allow adequate time to upload files which may be slower for non-DoD users and to avoid other technical difficulties that may be encountered. Offerors are also responsible for submitting files in the format specified and consistent with requirements stated elsewhere in this solicitation. Files that cannot be opened or are otherwise missing the required content are the responsibility of the Offeror.
- PIEE system will record the date and time of package submittal. The date and time of package submittal recorded in PIEE shall govern the timeliness of any proposal submission.
- LATE PROPOSALS WILL NOT BE CONSIDERED. NO HARD COPY PROPOSALS WILL BE ACCEPTED.
- It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from PIEE/Contract Opportunities (www.sam.gov).

4.2 PRE-PROPOSAL INQUIRIES (PPIs): All inquiries must be submitted in writing and received by the Contract Specialist **no later than 5 January 2026** in order to permit adequate time to reply to the inquiry. There is no guarantee that PPIs submitted after the cut-off date will be answered before the solicitation closes. Submit all questions to stephanie.l.wray2.civ@us.navy.mil and edward.d.flint.civ@us.navy.mil. Use of the PPI Log template is required. The PPI Log Template (Attachment A) can be found on the PIEE or the Contract Opportunities website under the Attachments section.

4.3 CONTRACT OPPORTUNITIES: Amendments will be posted directly to PIEE and Contract Opportunities/Sam.gov. Contractors shall request a DoD SAFE transmittal of the drawings and specifications by email from the contract specialist, Stephanie Wray, at stephanie.l.wray2.civ@us.navy.mil AND Ed Flint, at edward.d.flint.civ@us.navy.mil. Additionally, other postings will be made to PIEE/Sam.gov, such as the preproposal inquires (PPI) log, notice of revised drawings, etc., under the Attachments section of the RFP. It is recommended contractors check PIEE/Sam.gov and the Attachments section of the RFP periodically to see if additional postings have been made. It is the contractor's responsibility to check PIEE/Sam.gov for all postings.

5. INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal, including revisions and amendments, made prior to contract award and a copy of which is in the possession of both parties, will be incorporated into this contract upon award by reference with the same force and effect as if set forth in full text. All contractor personnel shall meet or exceed the qualification standards, experience levels and trade background set forth in the technical proposal.

In the event of an inconsistency between the provisions of this contract and the technical proposal, the inconsistency shall be resolved by giving precedence in the following order:

1. The contract (excluding the technical proposal), and then
2. The technical proposal.

6. ATTACHMENTS

- ATTACHMENT A - PRE-PROPOSAL INQUIRY LOG TEMPLATE
- ATTACHMENT B - CONSTRUCTION EXPERIENCE PROJECT DATA SHEET
- ATTACHMENT C - PAST PERFORMANCE QUESTIONNAIRE
- ATTACHMENT D - HISTORICAL SMALL BUSINESS UTILIZATION
- ATTACHMENT E - SMALL BUSINESS PARTICIPATION COMMITMENT DOCUMENT (SBPCD)
- ATTACHMENT F - INDIVIDUAL SMALL BUSINESS SUBCONTRACTING PLAN
- ATTACHMENT G - PRICE PROPOSAL FORM
- ATTACHMENT H - PIEE VENDOR ACCESS INSTRUCTIONS
- ATTACHMENT I - APPROVED IDENTITY PROOFING DOCUMENTS
- ATTACHMENT J - CRITERIA FOR DENYING ACCESS TO NAVY INSTALLATIONS
- ATTACHMENT K - DOD CUI NON-DISCOSURE AGREEMENT
- ATTACHMENT L - ECONOMIC PRICING ADJUSTMENT UNIT PRICE FORM

Section 00 22 00 - Supplementary Instructions

Miscellaneous text in this section has been modified to:

WAGE DETERMINATIONS

"General Decision Number: ME20250033 12/05/2025

Superseded General Decision Number: ME20240033

State: Maine

Construction Type: Heavy

County: York County in Maine.

HEAVY CONSTRUCTION PROJECTS

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: the contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022: the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number Publication Date
0 01/03/2025
1 07/25/2025

2 12/05/2025

* IRON0007-033 09/16/2025

Rates Fringes

IRONWORKER, STRUCTURAL AND
REINFORCING.....\$ 33.65 26.27

* SUME2014-014 01/30/2017

Rates Fringes

CARPENTER.....\$ 19.66 6.13

ELECTRICIAN.....\$ 25.24 7.01

LABORER: Asphalt, Includes
Raker, Shoveler, Spreader and
Distributor.....\$ 13.38 ** 1.39

LABORER: Common or General.....\$ 15.22 ** 3.97

LABORER: Concrete Worker
(includes removing forms,
demolition of existing
concrete, and pouring,
leveling and finishing
concrete).....\$ 25.33 17.07

LABORER: Pipelayer.....\$ 21.84 6.42

OPERATOR:
Backhoe/Excavator/Trackhoe.....\$ 19.88 8.48

OPERATOR: Bulldozer.....\$ 20.81 4.37

OPERATOR: Crane.....\$ 24.78 8.13

OPERATOR: Loader.....\$ 19.36 3.73

OPERATOR: Roller.....\$ 16.61 ** 3.44

PAINTER (Brush and Roller).....\$ 22.18 6.33

TRUCK DRIVER: Dump Truck.....\$ 15.41 ** 3.17

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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** Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75) or 13658 (\$13.30). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is

like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union

prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator

U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

"General Decision Number: ME20250053 12/05/2025

Superseded General Decision Number: ME20240053

State: Maine

Construction Type: Building

County: York County in Maine.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022: The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours performing on that contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number Publication Date

0 01/03/2025
1 01/17/2025
2 03/14/2025
3 04/04/2025
4 06/06/2025
5 07/25/2025
6 08/22/2025
7 12/05/2025

* CARP0349-002 09/01/2025

Rates Fringes

CARPENTER.....\$ 30.56 19.96

ELEC0567-002 06/01/2025

Rates Fringes

ELECTRICIAN.....\$ 38.74 21.14

ELEV0004-002 01/01/2025

Rates Fringes

ELEVATOR MECHANIC.....\$ 74.17 38.435+a+b

a. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the Friday after Thanksgiving Day, and Christmas Day.

b. VACATION: 6% under 5 years based on regular hourly rate for all hours worked. 8% over 5 years based on regular hourly rate for all hours worked.

* IRON0007-003 09/16/2025

Rates Fringes

IRONWORKER.....\$ 33.65 26.27

LABO0327-004 12/01/2023

Rates Fringes

LABORER: Common or General.....\$ 21.90 19.72

LABO0327-005 12/01/2023

Rates Fringes

LABORER: Mason Tender -
Cement/Concrete.....\$ 22.15 19.72

PLUM0131-001 06/03/2024

Rates Fringes

PIPEFITTER.....\$ 43.76 25.44

PLUM0716-002 08/01/2025

Rates Fringes

PLUMBER.....\$ 40.00 24.71

SUME2022-005 06/26/2024

Rates Fringes

BRICKLAYER.....\$ 33.00 11.13

CEMENT MASON/CONCRETE FINISHER...\$ 20.00 0.00

OPERATOR:

Backhoe/Excavator/Trackhoe.....\$ 32.79 4.40

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next

number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination

- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

- 2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

- 3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"